

(S E R V E D)
(JULY 30, 1996)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

DOCKET NO. 96-14

COMPANIA SUD AMERICANA DE VAPORES S.A.

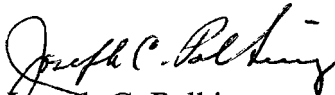
v.

INTER-AMERICAN FREIGHT CONFERENCE, ET AL.

NOTICE OF FILING OF COMPLAINT AND ASSIGNMENT

Notice is given that a complaint filed by Compania Sud Americana de Vapores S.A. ("Complainant") against Inter-American Freight Conference, Inter-American Freight Conference "Section C," A.P. Moller Maersk Line, Crowley Americas Transport, Inc., A/S Ivaran Rederi, Companhia Maritima Nacional, Companhia de Navegacao Lloyd Brasileiro, Empresa Lineas Maritimas Argentinas S.A., Empresa de Navagacao Alianca S.A., Frota Amazonica S.A., Hamburg-Sudamerikanische Dampfschiffahrts-Gesellschaft Eggert & Amsinck, and Transroll/Sea-Land Joint Service (collectively designated "Respondents") was served July 30, 1996. Complainant alleges that Respondents have violated sections 10(a)(2) and (3) of the Shipping Act of 1984, 46 U.S.C. app. §§ 1709(a)(2) and (3), by using funds from complainant's Irrevocable Standby Letter of Credit for costs in winding up a Brazil corporation, without authorization by the Inter-American Freight Conference Agreement.

This proceeding has been assigned to the office of Administrative Law Judges. Hearing in this matter, if any is held, shall commence within the time limitations prescribed in 46 CFR 502.61, and only after consideration has been given by the parties and the presiding officer to the use of alternative forms of dispute resolution. The hearing shall include oral testimony and cross-examination in the discretion of the presiding officer only upon proper showing that there are genuine issues of material fact that cannot be resolved on the basis of sworn statements, affidavits, depositions, or other documents or that the nature of the matter in issue is such that an oral hearing and cross-examination are necessary for the development of an adequate record. Pursuant to the further terms of 46 CFR 502.61, the initial decision of the presiding officer in this proceeding shall be issued by July 30, 1997, and the final decision of the Commission shall be issued by November 28, 1997.


Joseph C. Polking
Secretary